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VENUE

2. Pursuant to Civil Practice Law and Rules §§ 504(3) and 503(a) where the Plaintiff and Defendants reside in this county, where material factual events have taken place, this action is commenced in Queens County.

JURY DEMAND

3. Plaintiff respectfully demands a trial by a jury of all issues herein pursuant to Civil Practice Law and Rules § 4101(1) and (3).

PARTIES

4. Plaintiff KHAMWATI BUDHAI is a law enforcement officer who was falsely accused, arrested, and prosecuted for the underlying offenses.

5. The Defendant CITY OF NEW YORK is the political subdivision, under whose authority the accusation, arrest, and prosecution were authorized, and where the place where the events in question, even the alleged events, took place.

6. The Defendant DETECTIVE ROBERT ARNOLD is the State Actor, who acted under the color of state law for purposes of falsely accusing, arresting, and prosecuting Ms. Budhai.

FACTUAL BACKGROUND

7. On or about May 13, 2019, Ms. Budhai was arrested and prosecuted under Queens County Criminal Court Index No. CR-015316-19QN.

8. According to Detective Arnold's criminal complaint, Ms. Budhai had committed several crimes: (1) Criminal Contempt in the Second Degree, (2) Stalking in the Fourth Degree, and (3) Harassment in the Second Degree.

9. Detective Arnold alleged that in defiance of an order of protection, between

September 17, 2018, and October 18, 2018, Ms. Budhai had sent ten (10) emails.

10. Moreover, Detective Arnold's complaint alleged that Ms. Budhai was asked not to send those emails, but that she allegedly continued to send additional emails, and that those emails caused annoyance and alarm.

11. According to Detective Arnold's criminal complaint, "Between September 17, 2018, and October 18, 2018, in front of 82-55 Country Point Circle, County of Queens, State of New York," Ms. Budhai committed the aforementioned criminal violations.

12. The criminal complaint alleged that Ms. Budhai violated Section 215.50(3) by "intentionally disobey[ing]...a...mandate of a court," Arnold's criminal complaint alleging that Ms. Budhai sent the aforementioned communications in violations of the order, between September 17, 2018, and October 18, 2018

13. However, despite Arnold's complaint alleging the email communications, there was never any proof that the alleged emailer was in fact Ms. Budhai.

14. Moreover, at the time of the allegations, the order of protection had long expired.

15. Similarly, there was no proof that Ms. Budhai engaged in stalking or harassment.

16. Additionally, the alleged emails were never produced, such that there was never any evidence that the substance of the alleged emails was of a nature to cause alarm or serious annoyance.

17. On August 14, 2019, the Queens County District Attorney appeared before the court and informed the court that the District Attorney's office had not been furnished with any evidence, including the alleged missing evidence, and informing the Court that the District Attorney could not continue with the prosecution of the underlying criminal charges for which

the District Attorney had no evidence.

18. Therefore, the case was dropped, and the prosecution was dismissed.

19. As a result of the arrest Ms. Budhai was held in custody for nearly twenty-four hours, waiting to be arraigned.

CAUSES OF ACTION

FIRST CAUSE OF ACTION

Ms. Budhai brings a claim pursuant to 42 U.S.C. § 1983 against the Defendants for maliciously prosecuting Ms. Budhai.

20. Plaintiff repeats and restates as if stated herein all averments set forth in Paragraphs “1” through “19” above.

21. The Defendants initiated the underlying criminal proceeding against Ms. Budhai for alleged crimes of stalking, harassment, and criminal contempt.

22. Despite the initiation of the underlying criminal prosecution, the underlying prosecution was favorably disposed of in Ms. Budhai’s favor, as the District Attorney effectively conceded that there was no evidentiary basis for the alleged charges, and the Court dismissed such on that basis.

23. The Defendants lacked probable cause for the underlying prosecution of Ms. Budhai.

24. Despite the absence of any evidence, Defendant Arnold commenced the underlying prosecution, maliciously.

SECOND CAUSE OF ACTION

Ms. Budhai brings a claim pursuant to 42 U.S.C. § 1983 against the Defendants for malicious abuse of process in prosecuting Ms. Budhai.

25. Plaintiff repeats and restates as if stated herein all averments set forth in Paragraphs “1” through “24” above.

26. The Defendants employed regularly issued legal process to compel the performance or forbearance of some act, namely, the arrest and prosecution of Ms. Budhai.

27. The Defendants acted with the intent to harm Ms. Budhai without excuse or justification, where Defendant Arnold was maliciously and recklessly, in the absence of evidence for his claims, rather than being driven by evidence to do so.

28. As such, the Defendants were pursuing a collateral objective that is outside the legitimate ends of the process, making Ms. Budhai pay, and acting without legitimate reasons, not because that is what the evidence called for Ms. Budhai’s prosecution.

THIRD CAUSE OF ACTION

Mr. Puente brings a claim pursuant to 42 U.S.C. § 1983 against the Defendants for false arrest and imprisonment of Ms. Budhai.

29. Plaintiff repeats and restates as if stated herein all averments set forth in Paragraphs “1” through “28” above.

30. For purposes of the underlying malicious prosecution, the Defendants arrested Ms. Budhai, took her into custody, and intended to confine Ms. Budhai, as they kept Ms. Budhai in custody for nearly 24-hours.

31. Ms. Budhai was conscious of her confinement in custody as she was

held in the Defendants' custody for nearly 24-hours.

32. However, Ms. Budhai did not consent to that confinement. Ms. Budhai simply followed and adhered to the law, as she voluntarily surrendered to the Defendants.

33. The Defendants' confinement of Ms. Budhai was not otherwise privileged or supported by probable cause, as the case was later dismissed because the District Attorney had no evidence to substantiate the underlying criminal charges and allegations, as the evidence was fabricated and not credible, as such resulted from Defendant Arnold's malicious and reckless conduct in proceeding without any evidence.

REQUEST FOR RELIEF

WHEREFORE, Plaintiff respectfully requests relief and judgment, as follows:

- (a) Awarding compensatory damages and punitive damages to be proved at trial;
- (b) Awarding extraordinary, equitable and/or injunctive relief as permitted by law, equity, and the state law, including moving expenses to plaintiffs;
- (c) Awarding all the plaintiff reasonable costs and expenses incurred in this action, including counsel fees and expert fees;
- (d) Such other and further relief as this Court may deem just and proper.

Dated: Woodhaven, New York,
June 1, 2021

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